



Action Plan

YOUR COMPLETE 6-PHASE GUIDE

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Strategic Assessment

Secure, Notify, Preserve • Immediately After Death

Court Compliance & Eligibility

Eligibility, Venue, Parties • Before Court Filing

Petition & Authority

Petition, Notices, Letters • Court Filing → Authority

Asset Discovery

Inventory & Valuation • After Authority Issued

Creditor Claims

Claims & Exposure Management • After Authority Issued

Asset Liquidation

Transfers & Sales (If Needed) • After Inventory Prepared

Final Distribution

Accounting, Distribution, Close • After Claims & Taxes Addressed



Strategic Assessment

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Secure the Property

NEXT STEP

Change locks, forward mail, and ensure the home is protected from theft or damage.

Upload Photos

**Initial Property Protection**

Ensure the decedent's residence is secured, mail is forwarded, and assets are protected from loss or damage.

**Notify Social Security Administration**

Report the death to stop benefit payments and prevent overpayment recovery.



Upload Death Certificate



Report Death to SSA

**Cancel Credit Cards & Subscriptions**

Stop recurring charges and prevent identity theft by closing accounts.

Manage Accounts

**Manage Utilities**

Review decedent's utility accounts (electricity, water, gas).

**Conduct Genealogical Search** OPTIONAL

If heirs are unknown or missing, you must perform a formal search to identify all legal beneficiaries. This is required for your final distribution decree.

**Locate Important Documents (Intestate)** OPTIONAL

Since there is no Will, search for insurance policies, real estate deeds, and final account statements to inventory the estate.

Upload Documents

**Establish Estate Financial Account**

Open a separate fiduciary account for estate income and expenses once legal authority is obtained.



Upload Death Certificate



Upload Letters of Authority



Upload EIN

**Managed Payment of Immediate Bills**

Prioritize current utilities, mortgage, and insurance to protect the value of estate assets.

Track Bills



Confirm U.S. Legal Representative

Decide if you will hire a U.S. probate attorney or appoint a local co-executor/agent to handle on-the-ground tasks.



Verify Notarization Rules (Apostille)

Check if your current country of residence is a member of the Hague Apostille Convention. This determines how documents signed abroad must be authenticated for U.S. court acceptance.



Check HCCH Member States



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Court Compliance & Eligibility



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Validate Venue and Court Filing Authority

Confirm the decedent's legal domicile and county residency to ensure the application is filed in the legally appropriate court.



Screen Fiduciary Eligibility

Verify that the proposed executor or administrator meets all state-specific legal requirements to serve.



Validate Interested Parties

Identify all individuals legally entitled to notice or inheritance, including heirs-at-law, beneficiaries, and devisees.



Prepare Required Notices and Waivers

Generate the formal notice plan to serve interested parties, or gather Signed Waivers and Consents to expedite the process.

**Evaluate Need for Temporary Authority**

Determine if preliminary letters or special administration is necessary to protect assets or run a business while formal probate is pending.

**Calculate Court Filing Fees**

Determine the exact statutory filing fee based on the estimated gross value of the probate estate.

**Compile Required Court Form Packet**

Synthesize the official local forms and procedural filing notes required by your specific court into a ready-to-file package.



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**Petition & Authority**

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**Attend Administration Hearing**

Appear in court for the administration hearing. Since there is no Will, the court will confirm heirs and appointing you as Administrator.



Upload Valid ID



Upload Proof of Notice

**Obtain Letters of Administration**

Once the court approves the petition, obtain certified copies of your Letters of Administration.



Upload Letters of Administration

**File Small Estate Affidavit**

Use the Small Estate Affidavit to bypass court probate when probate assets are below \$100,000 (R.C.W. § 11.62.010).



Upload Affidavit Form



Upload Death Certificate

**Issue Certificate of Trust** OPTIONAL

Formalize successor trustee authority for trust-held assets.

[Upload Trust Agreement](#)**Obtain Business Operating Authority**

If the decedent owned a business, you may need a court order to continue operations and pay employees.

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Letters of Administration required

[Upload Documents](#) →

**Creditor Claims**

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**Notify Known Creditors**

Notify known creditors as appropriate and document your outreach (e.g., banks, credit cards, medical providers). Requirements and best practices vary by state.

[Upload Creditor notice template \(if used\)](#)[Upload Creditor contact list / notice log](#)**Evaluate Estate Solvency**

Compare total estate assets to total liabilities, taxes, and administration/funeral expenses to determine whether the estate appears solvent or insolvent.

**Monitor State-Specific Creditor Exposure Period**

Monitor the creditor exposure timeline applicable in your state. The trigger event and timing vary by state and case type. Avoid final distributions until creditor risk is appropriately managed (often by holding reserves and documenting claim handling).

**Monitor Creditor Claim Period**

Monitor the creditor claim period applicable in your state. The timing and trigger events are governed by state-specific statutes. See the guidance below for your state's claim period rules.

**Review Submitted Claims**

Examine each creditor claim for validity, amount, and supporting documentation.

[Review Claims](#)**Dispute or Reject Claims (If Applicable)** LOCKED

If a claim is incorrect, unsupported, or disputed, follow your state's procedure to dispute, reject, or negotiate the claim. Keep written documentation of the basis and supporting evidence.

**Pay Approved Claims (By Statutory Priority)** LOCKED

Pay valid debts in the statutory priority order (commonly including administration costs, taxes, secured debts, then unsecured claims). Document each payment and retain receipts.

**Document Proof of Creditor Notice (If Applicable)**

If your state requires proof of creditor notice (publication and/or direct notice), retain and submit the required proof in the format your court or process expects. Even when not required to file, maintaining proof supports a defensible administration record.

[Upload Notice log](#)[Upload Proof documents \(if applicable\)](#)[UPLOAD MISCELLANEOUS](#)**Asset Liquidation**

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**Obtain Court Approval for Minor Distributions**

Distributions to minors usually require a guardianship or court order to be placed in a blocked account.

**Present Letters to All Institutions**

Submit certified Letters of Authority to every bank, brokerage, and insurance company.

 Upload Letters of Authority

 Upload Death Certificate

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Transfer Financial Accounts LOCKED

Move stocks, bonds, and cash to estate account or directly to beneficiaries.

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Complete Property Sale & Transfer

If the estate owns real property and a sale is needed, confirm that the fiduciary has the appropriate legal authority in the target state. before signing a contract. Complete closing, deposit proceeds into the estate account, and retain all closing and tax documents.

Finalize Sale

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Issue Schedule K-1 to Beneficiaries

Provide beneficiaries with their share of income, deductions, and credits to report on their individual tax returns.

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Pay Final Taxes Check Deadline

File final individual 1040, estate 1041, and any estate tax returns.

 Upload All Tax Documents

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Prepare Final Accounting LOCKED

Document all income, expenses, and distributions for court review.

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Final Distribution

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Setup Blocked Accounts for Minors OPTIONAL

Ensure funds for minor beneficiaries are placed in court-approved blocked accounts.

**File Petition for Final Distribution** LOCKED

Request court approval to distribute remaining assets to heirs.

**Attend Final Hearing** LOCKED

Appear in court for approval of final accounting and distribution.

**Distribute Assets to Heirs** LOCKED

Transfer remaining assets according to Will and court order.

**File Final Accounting with Court** LOCKED

Submit final report showing all transactions and distributions.

**Prepare International Distribution** LOCKED

Collect exact beneficiary bank details, Swift codes, and pre-validate wire requirements.

**Close Estate** LOCKED

File final discharge and close estate bank account.

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ExpectedEstate is not a law firm. We provide recordkeeping tools to help executors document fiduciary actions for attorney review. Use does not create an attorney-client relationship.